Real Republic Australia

SUBMISSION TO THE PARLIAMENT OF AUSTRALIA'S

JOINT STANDING COMMITTEE ON ELECTORAL MATTERS

INQUIRY INTO THE 2025 FEDERAL ELECTION

15 OCTOBER 2025

INTRODUCTION

Mr Jerome Laxale MP
Member for Bennelong
Chair of the Joint Standing Committee on Electoral Matters
C/- Committee Secretary
PO Box 6021
Parliament House
Canberra ACT 2600

em@aph.gov.au

Dear Mr Laxale

It is with a deep sense of disappointment and frustration that I present this submission to the Joint Standing Committee on Electoral Matters (JSCEM) for its inquiry into the 2025 federal election.

That disappointment and frustration does not arise from the work of you as JSCEM chair , the Committee, or the MPs serving on it.

As always, the current Joint Standing Committee on Electoral Matters like its predecessors will no doubt once again play a valuable role in helping Australians understand the often complex public policy issues involved in our electoral and parliamentary systems.

At a time democracy is under threat around the world it is important that our elected representatives do all they can to ensure those systems work to the benefit of all Australians.

However, it is disappointing and frustrating that our Australian Constitution would need to be amended by referendums to achieve beneficial and overdue reforms in some of the areas your Committee has been tasked with examining – a pathway recently ruled out by Prime Minister Anthony Albanese who has made it clear he will not consider any more referendums following the outcome of the October 2023 referendum on a First Nations' Voice to Parliament.

His position is both timid and counterproductive. Oddly, it also sits at cross purposes with the request by his own government – via the Special Minister for State – through specific Terms of Reference asking your Committee to consider issues that could not be implemented without referendums making constitutional amendments.

Cynics may wonder if the time and effort to be invested in those aspects of your inquiry are worthwhile both for your Committee and those taking an interest in our electoral and parliamentary systems by spending time and effort making submissions.

Regardless, it is important that the views of Australians are recorded and hopefully may even cause a change of position by the Prime Minister.

An Australian republic is another beneficial reform that cannot be achieved without a referendum and the Prime Minister appears to have also walked away from that issue which remains a longstanding part of his party's policy platform.

A republic with a genuinely elected head of state remains our main focus, but at the same time the Real Republic Australia continues to advocate a range of other meaningful changes that are directly relevant to the Committee's current inquiry and I am pleased to present them to you in this submission.

I wish you and your Committee members well in their valuable work and I authorise publication of this submission.

[redacted]

David Muir AM
Chair
The Real Republic Australia

THE REAL REPUBLIC AUSTRALIA

The Real Republic Australia advocates for an Australian republic with a genuine directly elected Head of State.

Its origins go back to the February 1998 Constitutional Convention held in Canberra where delegates such as Brisbane's former Lord Mayor, Clem Jones AO; the former mayor of North Sydney and independent MP in both the NSW and Federal parliaments, Ted Mack; former independent federal MP for the Victorian seat of Wills, Phil Cleary; and others all supported the concept of a directly elected Head of State.

Clem Jones led a team of Queensland delegates elected to the Convention including former Deputy Mayor of Townsville, Ann Bunnell, and Brisbane lawyer David Muir.

David Muir is currently chair of the Real Republic and chair of the Clem Jones Group.

The late Clem Jones (1918-2007) was Brisbane's longest serving Lord Mayor from 1961 to 1975 and is acknowledged as the driving force behind the city's development from what was often dismissed as a big country town to a modern, vibrant world-class city.

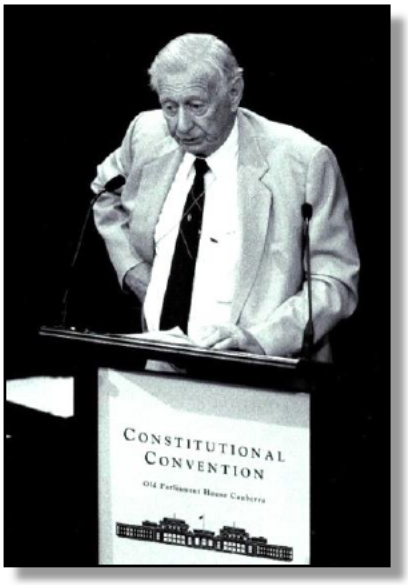
As Lord Mayor he respected the royal family and always warmly welcomed the late Queen Elizabeth II and members of her family whenever they visited Brisbane.

Like senior members of the royal family, Clem knew that the republic debate was not about them but was about our nation and its future.

As a champion of average Australians, he was passionate about voters having the right to choose their Head of State through a direct election.

His estate, through the Clem Jones Group, continues to promote an Australian republic with a genuine directly elected Head of State.

The Real Republic Australia believes an Australian republic with an elected Head of State should be just one in a series of reforms to the Australian Constitute that would benefit all Australians.



Clem Jones addresses the 1998 Constitutional Convention

Photo by Loui Seselja, National Library of Australia

Those other proposed reforms include:

- four-year, fixed, and synchronised terms for both houses of Federal Parliament to stop prime ministers gaming the system by picking election dates, cutting the number of elections, and ensuring government mandates are not hostage to Senators elected years earlier,
- breaking the constitutional nexus that demands the lower house is twice the size of the Senate,
- eliminating costly by-elections with a referendum question creating a Senate-style casual vacancy system for the House of Representatives,
- adjusting the number of Senators for each state while retaining two apiece for the NT and ACT,
- constitutional recognition of local government, and
- instituting a fairer process for changing the Constitution and including voters in the NT and ACT in both parts of the "double majority" needed to secure passage of a referendum question.

The Real Republic Australia has released details of a "roadmap" for achieving beneficial constitutional reforms such as those listed above by establishing a series of Australian Constitutional Assemblies comprising average voters and an independent expert chair to assess proposed changes as a means to avoid the partisan politicking that has hampered reform efforts in the past.

ABOUT OUR SUBMISSION

The Australian Parliament approved the following Terms of Reference (TOR) to the Committee for the conduct of the inquiry into the May 2025 federal election:

> *That the Joint Standing Committee on Electoral Matters inquire into and report on all aspects of the conduct of the 2025 federal election and related matters, including consideration of the following:*
>
> - *assessment and review of the purported increase in incidents of aggressive conduct, deliberate obstruction, and intimidating behaviour towards voters, political participants, volunteers, and Australian Electoral Commission (AEC) officials;*
> - *potential reform of safety and security arrangements, including consideration of the powers, processes, and capacity of the AEC to manage and address increasingly threatening or disruptive behaviour;*
> - *the suitability and potential reform of measures to ensure universal voter access, including polling booth availability and location, early voting, remote polling, and postal voting arrangements; and*
> - *the suitability of the current authorisation framework and requirements, having regard to the evolution of communication methods and technology.*
>
> *The Special Minister of State has also asked the Committee to consider the interaction with the following:*
>
> - *the implementation and operation of the electoral reform passed by the 47th Parliament, particularly regarding the use of money or capital in the most recent election;*
> - *reforms to address the ongoing threats of interference in our electoral system, both foreign and domestic; and*
> - *the composition of the Parliament as a whole, including: the length of the parliamentary term; the potential for fixed terms; and the number of elected representatives relative to the growth in population and the electorate.*

This submission addresses only the last of the three Terms of Reference put forward to the Committee by the Special Minister of State which itself relates directly to several of the reforms advocated by the Real Republic Australia outlined in the previous section, specifically our proposals for:

- four-year, fixed, and synchronised terms for both houses of Federal Parliament to stop prime ministers gaming the system by picking election dates, cutting the number of elections, and ensuring government mandates are not hostage to Senators elected years earlier,
- breaking the constitutional nexus that demands the lower house is twice the size of the Senate – a reform that if not taken would one day see a lower house of 300 MPs and around 150 Senators,
- eliminating costly by-elections with a referendum question creating a Senate-style casual vacancy system for the House of Representatives, and
- adjusting the number of Senators for each state while retaining two apiece for the NT and ACT.

SUMMARY OF RECOMMENDATIONS

The following is a summary of the recommendations by the Real Republic Australia to the Committee's current inquiry into the 2025 federal election and are expanded upon in the remainder of this submission.

RECOMMENDATION No.1:
The Real Republic Australia recommends that the Joint Select Committee on Electoral Matters recognises that the adoption of fixed four-year terms for both the House of Representatives and the Senate offers real and measurable benefit to Australians including considerable future cost savings to taxpayers as well as answering longstanding calls from the business community for more certainty in their own forward planning and investment decisions as well as better quality government decision-making .

RECOMMENDATION No.2:
The Real Republic Australia recommends that the Committee recognises that the advent of fixed four-year terms for the House of Representatives does not automatically extend Senate terms to eight years.

RECOMMENDATION No.3:
The Real Republic Australia recommends that the Committee urges the Albanese Government to schedule a referendum to coincide with the 2028 federal election at which voters should be asked to say "yes" or "no" to a question seeking to change the Australian Constitution to adopt fixed and synchronised four-year terms for both the House of Representatives and the Senate.

RECOMMENDATION No.4:
The Real Republic Australia asks the Joint Select Committee on Electoral Matters to recognise that elimination the nexus in Section 24 of the Australian Constitution is an urgent necessity if other changes able to be implemented by the Australian Parliament under Sections 7 and 27 to adjust the sizes of the Senate and House of Representatives are to be effective and not trigger an unjustified expansion of Senate numbers.

RECOMMENDATION No.5:
We urge the Committee to recommend that if the Albanese Government wishes to improve voter representation by expanding House of Representative numbers it should not do so until a referendum is held seeking voter approval to abolish the nexus between the sizes of both house of parliament contained in Section 24 of the Constitution.

RECOMMENDATION No.6:
The Real Republic Australia recommends that once the nexus in Section 24 of the Constitution is removed, the Australian Parliament legislates to cut Senate numbers for each state from 12 to six with the 36 positions so saved transferred to the House of Representatives seats in mainland states thereby achieving increased representation without the need for extra politicians or significant extra costs to taxpayers.

RECOMMENDATION No.7:
We recommend that at the time of a referendum to break the Section 24 nexus a referendum question be put to voters to ensure that if the ACT or NT achieve statehood they would be entitled to the same number of Senators (six) as original states.

RECOMMENDATION No.8:
We urge the Committee to recommend to government an examination of the type of Senate electorate system advocated in Barnaby Joyce's 2020 private member's Representation Amendment Bill if the government decides not to proceed for a referendum to eliminate the nexus in Section 24 of the Constitution governing the relative sizes of the upper and lower houses of the Australian Parliament.

RECOMMENDATION No.9:
We urge the Committee to recommend the adoption of a Senate-style casual vacancy system to replace MPs in the House of Representatives whose seats fall vacant during any term following their election or re-election and that such a system, like the Senate's:

- require a replacement MP to be of the same party as the Member who won the seat at the previous election even if they subsequently had renounced that affiliation, and
- that provisions be made for independent MPs to nominate their successor in the event of their seat falling vacant.

RECOMMENDATION No.10: We ask the Committee to recommend that the government undertake a long-term program of constitutional reform to deliver measurable benefits to Australians and our system of parliamentary democracy and that such a process be centred around the use of assemblies of average voters similar to the Citizens' Assemblies employed in Ireland to deliver nonpartisan assessments and recommendations for constitutional changes.

ISSUES REFERRED BY THE SPECIAL MINISTER OF STATE

As noted above the Special Minister of State, SA Senator Don Farrell – in other words the Albanese Government – has asked the Committee to consider among others matters:

- the composition of the Parliament as a whole, including: the length of the parliamentary term;
- the potential for fixed terms; and
- the number of elected representatives relative to the growth in population and the electorate.

All three require constitutional changes of some degree.

- Section 28 specifies three-year terms for the House of Representatives,
- setting a fixed election day/date may be achievable through legislation but would be put beyond doubt and likely be made a permanent fixture of our democratic system by a constitutional amendment,
- the number of MPs in the Australian Parliament is linked to the nexus in Section 24 that requires the lower house to be twice the size of the Senate, a provision that would require a referendum to be altered.
- the composition of the Parliament and factors influencing it such as population growth is also linked to Section 24 which mandates a minimum of five MPs for each state.

Unfortunately, the Prime Minister has shied away from any future referendum on any constitutional change, apparently for as long as he is in office.

Nevertheless, we take this opportunity to place on record the Real Republic Australia's position in relation to the points Senator Farrell has asked the Committee to consider.

LENGTH OF THE PARLIAMENTARY TERM

We note that a previous JSCEM examining the 2019 federal election recommended a further separate inquiry into the length of parliamentary terms *"with a view to introducing non-fixed four year terms for the House of Representatives (and consequently eight year terms for the Senate) to bring the Commonwealth Parliament into line with state parliaments".*

We preface further comment by making three points concerning:

- lack of action,
- a preference for fixed terms
- shorter not longer Senate terms.

Lack of action

As far as we are aware nothing happened under either the Morrison or Albanese governments to address the previous JSCEM recommendation to examine four-year terms for the House of Representatives via a separate inquiry.

We welcome the fact that the current Committee is undertaking this work but lament the time lost since the previous recommendation arising from the 2019 election inquiry.

We also trust that the Committee will support fixed four-year terms, even against the background of the Prime Minister's refusal to consider a referendum to achieve such a change.

A persistence in the Prime Minister's position against any referendum will only see more time wasted in implementing a beneficial change.

A preference for fixed terms

We advocate for fixed four-year terms for the House of Representatives and not the *"non-fixed four-year terms"* suggested by the previous JSCEM following the 2019 election.

Only fixed parliamentary terms can end the unfair game-playing that disadvantages opposition parties and MPs by having election dates set by governments and prime ministers specifically who naturally pick the most political advantageous time to go to the polls.

Four-year fixed terms can give the increased certainty the business sector and others often say is needed for better forward planning and providing more time for better quality government decision-making as well as more time to foster any public debate necessary to gain support for a particular decision or initiative.

All states and territories now have four-year terms for their lower houses and only Tasmania does not have fixed terms.

There has been no significant negative impacts evident in the shift from unfixed three-year terms to fixed four-year terms in those jurisdictions that have adopted them.

There is no reason to believe any negative effects would be experience at the federal level.

Shorter not longer Senate terms

We do not support the suggestion by the former JSCEM that a four-year term for the House of Representatives would consequently require an eight-year term for the Senate.

Senate terms are outlined under Section 7 of the Constitution which specifies six-year terms and there exists no requirement for eight-year Senate terms if the lower house term is four years.

The Real Republic Australia believes that both houses of our federal parliament should run for the same fixed four-year term.

Various proposals relating to terms of parliament have been the subject of previous constitutional referendums none of which achieved the constitutionally required "double majority" to pass – a national majority of votes across all states and territories plus a "yes" vote in a majority of states excluding the NT and ACT.

Most recently, in September 1988 Labor Party Prime Minister, Bob Hawke, put to voters a referendum question to provide for four-year maximum, but not fixed, terms for members of both houses of the Australian Parliament.

MEASURABLE BENEFITS

We endorse the views outlined above in favour of four-year terms which we also believe should be fixed terms with an election day or parameters for an election day (eg: a Saturday in May every four years which would give some flexibility) set either by legislation or constitutional amendment.

We believe both houses should share the same term and both should be dissolved prior to an election with all Senators being elected on the same day and for the same four-year term as MPs in the House of Representatives.

One benefit from such an arrangement would be that both houses of parliament would be shaped by the same mandate given on the same day by Australian voters.

Under present arrangements every three years – or less if a prime minister chooses for politically advantageous reasons – 40 Senators face the voters on election day.

This comprises half of all the 12 Senators in each of the six states (36 of 72 total) and the four Senators from the ACT and Northern Territory (two Senate seats each whose terms have been tied to the lower house since 1975 when both territories were allocated Senate representation).

That means the mandate of a government formed in the House of Representatives on election day can be held hostage by 36 Senators – in theory at least and in practice by at some of that number as history has shown – who were elected three years earlier.

Electing all members of both houses on the same day for the same term would do away with a three-year-old hangover mandate that today persists even though voters have delivered an entirely new mandate on election day.

Electing all Senators at once would mean doing away with the system of rotation as outlined in Sections 13 and 14 of the Constitution under which decisions must be made on which Senators face voters at which future election.

There are also measurable cost savings to be made for taxpayers under a system of fixed four-year terms.

Figures from the Australian Electoral Commission show:

- the 2022 federal election – for the House of Representatives and half the Senate – cost taxpayers $522.4 million for the AEC to run and in per vote subsidies for qualifying parties and candidates,
- the 2019 House of Representatives and half-Senate election – cost taxpayers $372.5 million,
- the 2016 double dissolution election cost taxpayers $286.6 million,
- the 2013 House of Representatives and half-Senate election cost taxpayers $193.7 million.

The increases in election costs of around 40% every three years suggests the 2025 election may prove to have cost taxpayers somewhere in the $700 million-$800 million range. We will know when the AEC releases its figures.

But it is reasonable to suggest that the 2028 election may break or come close to the $1 billion barrier.

By adopting fixed four-year terms for our Australian Parliament we can ensure taxpayers in the not-too-distant future can be saved $1 billion every 12 years which could be allocated to any number of positive uses.

Fixed elections would also mean there would be no reason for the current lengthy election campaigns since all participants, especially the Australian Electoral Commission, would be aware of the election date and could plan well ahead accordingly.

Under a system of fixed election dates a formal campaign period of a specific and appropriate number of weeks – even as short as a fortnight or three weeks – could be legislated with designated activities prohibited outside the formal period.

Fewer elections and shorter campaigns would also mean less call on political parties and related entities to undertake fundraising, which currently can be a driving force for either the perception of or existence of corruption in government decision-making and between donors and political parties.

THE REAL REPUBLIC AUSTRALIA RECOMMENDATION No.1:

The Real Republic Australia recommends that the Joint Select Committee on Electoral Matters recognises that the adoption of fixed four-year terms for both the House of Representatives and the Senate offers real and measurable benefit to Australians including considerable future cost savings to taxpayers as well as answering longstanding calls from the business community for more certainty in their own forward planning and investment decisions as well as better quality government decision-making .

THE REAL REPUBLIC AUSTRALIA RECOMMENDATION No.2:

The Real Republic Australia recommends that the Committee recognises that the advent of fixed four-year terms for the House of Representatives does not automatically extend Senate terms to eight years.

THE REAL REPUBLIC AUSTRALIA RECOMMENDATION No.3:

The Real Republic Australia recommends that the Committee urges the Albanese Government to schedule a referendum to coincide with the 2028 federal election at which voters should be asked to say “yes” or “no” to a question seeking to change the Australian Constitution to adopt fixed and synchronised four-year terms for both the House of Representatives and the Senate.

Opponents of four-year terms and fixed four-year terms claim that not much is gained from adding an extra year to a government’s term. As one political analysts put it:

> *“For instance, there is little evidence that those countries with longer terms have performed better than Australia in running their economies or implementing needed reforms. Neither the United Kingdom and France with five-year terms nor the United States with four, are exemplars of good policy practice or reform initiatives. Neither have Australian states or territories with their fixed four-year terms been more accountable, reined in overspending, reduced waste, or adopted a long-term policy on anything. They limp and react from crisis to crisis.”*

Scott Prasser
The case against four-year terms for the Commonwealth Parliament
Australasian Parliamentary Review Vol.39 No.1
Australianasian Study of Parliament Group

Former prime minister Tony Abbott has taken a stand against extending parliamentary terms, saying in March 2024 that Australia “needs more democracy, not less democracy” to improve public engagement in politics.

“I’ve always taken the view that if there’s a bad government an election can’t come soon enough, and if it’s a good government, it shouldn’t be scared of an election,” he was reported said in an Institute of Public Affairs podcast interview.

Mr Abbott’s comments were prompted by statements at the time by Prime Minister Albanese to the effect that a three-year term was too short.

Former prime minister John Howard said he backed four-year terms in principle while recognising the hurdles of a referendum process.

The then Opposition Leader, Peter Dutton, also said he supported four-year terms in principle and would be prepared to speak to Mr Albanese about the idea if the PM was serious. Nothing eventuated and by January 2025 in the lead-up to the May election.

When Mr Albanese repeated his support for fixed four-year terms, Mr Dutton had shifted position, saying the PM's support for four-year terms showed Albanese was desperate to "cling to office".

This type of politicking has been shown previously to help sink otherwise beneficial constitutional reforms and referendums. We address this problem at the end of this submission.

COMPOSITION OF THE PARLIAMENT

Special Minister of State, Senator Farrell, also asked the Committee to consider the composition of the Australian Parliament as a whole. He has included a request to examine the number of elected representatives relative to the growth in population and the electorate.

The Real Republic Australia again makes the point that the type of reforms we advocate that could achieve such stated aims would require constitutional amendments through referendums.

We again also state our disappointment that these matters are being considered by the Committee in good faith but face little to no prospect of being advanced because of the Prime Minister's stated opposition to further referendums.

We recognise that the definition of the Australian Parliament in Section 1 of the existing Constitution includes the Monarch, the Senate, and the House of Representatives. The Monarch's role is naturally a matter to be discussed in the context of proposals for an Australian republic which does not form part of the Terms of Reference of the Committee.

We therefore confine our comments to the two houses of our parliament and we have therefore structured this part of our submission to cover:

- relevant constitutional provisions and constraints,
- the size of the House of Representatives,
- the size of the Senate, and
- ideas for reform and better representation.

Relevant constitutional provisions and constraints

The Real Republic Australia recognises that there are several parts of the Australian Constitution – itself written by colonial representatives and others and approved by voters on each colony by referendums resulting in Federation in 1901 – that need to be kept in mind when discussing the composition and size of the Australian Parliament.

Section 7

Section 7 covers the broad structure of the Senate, saying:

"The Senate shall be composed of senators for each State, directly chosen by the people of the State, voting, until the Parliament otherwise provides, as one electorate."

It goes on to specify:

"Until the Parliament otherwise provides there shall be six senators for each original state. The Parliament may make laws increasing or diminishing the number of senators for each state, but so that equal representation of the several original states shall be maintained and that no original state shall have less than six Senators."

Section 24

The flexibility offered by Section 7 to successive parliaments to change Senate numbers, naturally via governments in power at any given time, is necessary in part to adhere to Section 24, that mandates the so-called nexus between the upper and lower houses in the following manner:

> *"The House of Representatives shall be composed of members directly chosen by the people of the Commonwealth, and the number of such members shall be, as nearly as practicable, twice the number of the Senators."*

Section 24 goes on to outline how the number of lower house MPs are to be determined in each state:

"The number of members chosen in the several States shall be in proportion to the respective numbers of their people, and shall, until the Parliament otherwise provides, be determined, whenever necessary, in the following manner:

- *a quota shall be ascertained by dividing the number of the people of the Commonwealth, as shown by the latest statistics of the Commonwealth, by twice the number of the senators;*
- *the number of members to be chosen in each State shall be determined by dividing the number of the people of the State, as shown by the latest statistics of the Commonwealth, by the quota; and if on such division there is a remainder greater than one-half of the quota, one more member shall be chosen in the State."*

Section 24 ends by declaring that *"five members at least shall be chosen in each original state"*.

The last provision explains why Tasmania has five federal electorates despite its relatively low population and why all other states have on average more voters per electorate.

After each federal election the Australian Bureau of Statistics under the *Commonwealth Electoral Act* follows a process in line with Section 24 to calculate the number of electorates in each state and territory to be applied for the next election.

For the 2025 election a population quota of 177,477 set in July 2023 was applied and meant that states and territories were allocated the following number of seats with Tasmania's allocation fixed at five electorates under the Constitution:

HOUSE OF REPRESENTATIVES 2025 ELECTION	
STATE/TERRITORY	SEATS
New South Wales	46
Victoria	38
Queensland	30
Western Australia	16
South Australia	10
Tasmania	5
Australian Capital Territory	3
Northern Territory	2
Total electorates	**150**

If the quota system used in other states and territories had been applied to Tasmania it would be entitled to three not five federal seats.

Section 27

Like Section 7 governing the size of the Senate, Section 27 of the Constitution titled "Alteration of number of members" gives the Parliament power to altering the size of the House of Representatives. It states:

> *"Subject to this Constitution, the Parliament may make laws for increasing or diminishing the number of the members of the House of Representatives."*

Section 27 as well as Section 7, together with the nexus in Section 24 linking the size of the Senate to the lower house, are key elements in determining the size of the Parliament and when considering any changes to the composition of the Parliament.

Size of the House of Representatives

Recent statements by Special Minister of State, Senator Farrell, suggest a willingness by the government to consider more MPs in the House of Representatives to improve voter representation and account for a growth in population since the last significant increase nearly 40 years ago.

The JSCEM inquiry into the 2022 election recommended a separate inquiry "into increasing the size of the House of Representatives to reduce malapportionment and improve the ratio of electors to MPs".

Nothing was done to achieve such a review but Senator Farrell's request of the current JSCEM is in line with the previous JSCEM's request.

The last significant increase in the size of the lower house was undertaken via the Hawke Government's *Representation Act 1983* which lifted MP numbers from 125 to 148 at the 1984 election.

The previous significant increase prior to that had been in 1948 in time for the 1949 election when the number of MPs rose from the 75 at Federation in 1901 to 123.

Adjustments permitted to be made by Parliament without being large enough to trigger the nexus provisions meant by 1983 there were 125 MPs in the lower house.

The Hawke Government argued at the time that the nation's population had doubled since 1949 but the number of lower house MPs had remained largely static.

Similarly, slight adjustments since 1984 have seen the House of Representatives reach 150 and 151 members at recent elections.

Australian Electoral Commission figures show Section 24's demand that no state have fewer than five MPs means that for the 2025 election Tasmania as the smallest state in population had five seats each with enrolments ranging from:

- 74,304 in Clark,
- 80,378 in Bass
- 83,693 in Franklin,
- 84,244 in Braddon, and
- 88,977 in Lyons.

All of Tasmania's seats sit within the bracket of the 10-lowest-enrolement seats of all current 150 electorates. So too are the two NT seats of Lingiari (76,817 electors) and Solomon (78,702).

Two of the ACT's three electorates are in the bottom 10 – Canberra (102,942) and Fenner (105,428) – with Moreton in Queensland filling out the bracket at 109,260 electors. The remaining ACT seat, Bean, is ranked 135 out of 150 seats with an enrolment of 113,876.

All remaining seats range from 114,123 electors in the Victorian seat of Corangamite up to Longman in Queensland, the largest seat by enrolment at 142,744.

With such a big disparity – the smallest seat by enrolment being almost half the size of the largest – it is clear that Senator Farrell is on solid ground when speaking of the need to improve representation across the House of Representatives.

Even if Senator Farrell's intention is to expand only the lower house, the constitutional nexus would need to be broken by a referendum to abolish Section 24, otherwise his proposal if adopted and implemented would also see an increase in the Senate's size.

How Senator Farrell's which is, presumably, the government's position sits with the Prime Minister's apparent refusal to consider any more referendums while in office is unclear.

The size of the Senate

The increases since Federation in the size of the House of Representatives have meant that in line with Section24 the Senate has also increased in size:

- 36 Senators – six per original state – at Federation in 1901,
- 60 Senators in 1948,
- 64 Senators when the ACT and NT were allocated two Senate seats each in 1975,
- 76 Senators (12 per state plus two each per territory) with the 1984 expansion of the lower house.

As already mentioned above, there is no need for the Senate to have eight-year terms if the House of Representatives moved to four-year terms as the six-year Senate terms is the subject of Section 7 of the Constitution.

There has been some recent suggestion of increasing Senate numbers. A recommendation of the previous JSCEM's review of the 2022 election was for Senate representation for the NT and the ACT to "be increased from two to four Senators each".

A member of that same inquiry, ACT Senator David Pocock, submitted additional comments to the committee's main recommendations in which he argued for an extra four Senators for each of the ACT and the NT taking their total complement from two apiece to six.

He called for "the baseline level of representation for the ACT and NT in the Senate to as close to half the representation of states as possible".

"Given the current number of Senators in each state, this would see the ACT and the NT each have six Senators. Terms [for ACT and NT Senators] should increase to six years and commence on 1 July following the election in line with the states," Senator Pocock argued.

The Real Republic Australia believes that many Australians would find it difficult to justify extra politicians on the public payroll, especially in the form of four extra Senators in both the ACT and NT – territories with low populations relative even to the smallest state of Tasmania.

For information purposes, the most recent population figures from the Australian Bureau of Statistics as at 31 March 2025 are below.

STATE/TERRITORY	POPULATION (million)	12-MONTH CHANGE	% CHANGE
New South Wales	8,579,200	101,800	1.2
Victoria	7,053,100	124,600	1.8
Queensland	5,647,500	98,600	1.8
Western Australia	3,030,200	67,500	2.3
South Australia	1,898,600	19,900	1.1
Tasmania	576,100	1,100	0.2
Australian Capital Territory	483,800	6,200	1.3
Northern Territory	263,400	3,500	1.3
Australia	27,536,900	423,400	1.6

Ideas for reform and better representation

The Real Republic believes that there exist two starting points for any discussion on the composition of the Australian Parliament and any move to improve the level of representation and inject greater equity into the relativities in the lower house between the number of electors and MPs. They are:

- the need to leave untouched existing constitutional provisions providing a minimum five lower houses seats to all original states, and
- the need to break the constitutional nexus government the relative sizes of the upper and lower houses.

We believe that although there may well be valid arguments about the uniform number of Senators across original states regardless of their populations, the political arguments from smaller states would likely prevent any referendum question proposed to change that situation being approved.

We believe the bigger problem needing to be tackled, and where the government should direct its efforts if it seeks to change and improve the composition of the parliament, is to break the nexus contained in Section 24.

Unless the nexus is addressed, then at some point – potentially in the near future as the national population grows – a future government may decide to expand the House of Representatives to 200 MPs.

An increase of around 50 MPs is not impossible since that was the magnitude of the expansion undertaken in 1948.

A House of Representatives of 200 MPs would necessitate a Senate of around 100 and Australians would be within their rights to ask: Why?

We suggest that even though the Senate was intended to be "the states' house", today most Australians would be hard pressed to name the 12 Senators serving their state. In addition, we are not aware of any past episodes in which all Senators from any state have voted *en bloc* across party lines on a matter of principle affecting their state.

Breaking the nexus should be a matter undertaken urgently by the Albanese Government if it wasn't the necessary flexibility to improve representation of voters by adding MPs to the lower house.

It has been tried before, without success. On Saturday 27 May 1967 Australians were asked at a referendum to say "yes" or "no" to a question seeking their approval to enable the Commonwealth to enact laws for Aboriginal people and to remove the prohibition against counting Aboriginal people in census counts.

Famously, that referendum question – put to the people by the Prime Minister Harold Holt – was approved by the biggest ever margin with almost 91% of voters saying "yes" and a majority of "yes" votes being recorded in all states, not just a majority.

But another question the Prime Minister put to voters that day did not fare as well. Holt also asked Australians to approve a question that would mean dispensing with the nexus and enabling governments to increase the number of MPs in the House of Representatives without necessarily increasing the number of Senators.

That question received just over 40% support across the nation and only NSW recorded a majority of "yes" votes.

The inquiry after the 2019 election recommended "that consideration be given to a future constitutional referendum to break the nexus between the number of Senators for the States and the number of Members of the House of Representatives".

Nothing happened then but we believe action should be taken now.

THE REAL REPUBLIC AUSTRALIA RECOMMENDATION No.4:

The Real Republic Australia asks the Joint Select Committee on Electoral Matters to recognise that elimination the nexus in Section 24 of the Australian Constitution is an urgent necessity if other changes able to be implemented by the Australian Parliament under Sections 7 and 27 to adjust the sizes of the Senate and House of Representatives are to be effective and not trigger an unjustified expansion of Senate numbers.

THE REAL REPUBLIC AUSTRALIA RECOMMENDATION No.5:

We urge the Committee to recommend that if the Albanese Government wishes to improve voter representation by expanding House of Representative numbers it should not do so until a referendum is held seeking voter approval to abolish the nexus between the sizes of both house of parliament contained in Section 24 of the Constitution.

It is difficult to determine exactly how six Senators in the ACT and NT, as Senator Pocock suggests, would better represent their populations more than the current two Senators in each territory.

Indeed, it is arguable how more than the current 12 Senators in each state could improve representation – if the lower house increases sufficiently and the nexus remains.

The only way we see to guarantee better direct representation of voters by Senators would be to adopt the model of having regional electorates for Senators. This idea was most recently prosecuted by former National Party leader, Barnaby Joyce, who in 2020 proposed a private member's Bill to divide states into six Senate electorates.

Mr Joyce's *Representation Amendment (6 Regions Per State, 2 Senators Per Region) Bill* outlined a plan for voters to elect two Senators in each of six regions within a state – a plan he noted was possible without a referendum under Section 7 of the Constitution which states:

> *"The Senate shall be composed of senators for each State, directly chosen by the people of the State, voting, until the Parliament otherwise provides, as one electorate."*

Speaking to his Bill, Mr Joyce said most Senators' offices were concentrated in capital or major regional cities.

"What we need is six regions per state, which we can do by an act of this parliament. No region of those six should be bigger than 30% of the state, and no urban basin should be more than one region," he said when introducing his Bill.

"It would not be unusual when you consider that, in the United States, New York [state] has two senators — but, in Australia, Adelaide has 11.

"What this means is vast swathes of our nation in a geographic area do not have a Senate representation. Not only that, but Indigenous Australians, who are calling for a voice to parliament, are missing a voice in parliament."

Mr Joyce's plan was predicated on the nexus not being removed.

"We need to make sure, as the seats get bigger and bigger and bigger in the House of Representatives in regional areas, that this is offset by the capacity to get more Senate representation," Mr Joyce said.

While the idea of Senate electorates may be attractive at least to some, we believe the priority remains the removal of the nexus.

We also suggest that rather than lift Senate numbers in the ACT and NT to levels out of proportion with their populations, as Senator Pocock and others propose, a different approach should be considered.

The Real Republic Australia proposes a three-stage process:

- the scrapping by referendum of the nexus,
- a reduction in Senate numbers by legislation, and
- reallocation of former Senate positions to the House of Representatives.

If the Senate is truly a states' house and a house of review, and if the House of Representatives is as its name suggests the chamber where governments are formed representing the people of Australia, then it is the lower house that should be enhanced if we are to improve representation as the Special Minister of State suggests.

We suggest that once the nexus disappears each state should return to the original six Senators provided for in the Constitution at Federation while the ACT and NT retain two Senators each. That would free up 36 positions to be transferred to the House of Representatives in mainland states to improve representation without the need for taxpayers to support additional politicians.

Provision could be made for both the NT and ACT to attain the same Senate representation as states if and when they achieve statehood.

In the absence of a successful referendum to break the nexus, an extra 36 seats added to the lower house to total 186 electorates would necessitate a Senate of at least 94 Senators – 15 per state and two each for the territories.

We conclude our consideration of this issue by adding that we urge the Committee to recommend that in the absence of any willingness on behalf of the government to act to remove the nexus in Section 24, that the Senate electorate model proposed by Barnaby Joyce be progressed. This fallback position, while not delivering the flexibility that the removal of the nexus would provide, does go some way to increasing representation of voters by their elected representatives.

THE REAL REPUBLIC AUSTRALIA RECOMMENDATION No.6:

The Real Republic Australia recommends that once the nexus in Section 24 of the Constitution is removed, the Australian Parliament legislates to cut Senate numbers for each state from 12 to six with the 36 positions so saved transferred to the House of Representatives seats in mainland states thereby achieving increased representation without the need for extra politicians or significant extra costs to taxpayers.

THE REAL REPUBLIC AUSTRALIA RECOMMENDATION No.7:

We recommend that at the time of a referendum to break the Section 24 nexus a referendum question be put to voters to ensure that if the ACT or NT achieve statehood they would be entitled to the same number of Senators (six) as original states.

THE REAL REPUBLIC AUSTRALIA RECOMMENDATION No.8:

We urge the Committee to recommend to government an examination of the type of Senate electorate system advocated in Barnaby Joyce's 2020 private member's *Representation Amendment Bill* if the government decides not to proceed for a referendum to eliminate the nexus in Section 24 of the Constitution governing the relative sizes of the upper and lower houses of the Australian Parliament.

ELIMINATING LOWER HOUSE BY-ELECTIONS

Although not covered specifically by its terms of reference for the current inquiry, the Real Republic Australia urges the Committee to consider a proposal to eliminate costly by-elections for the House of Representatives – a reform we have advocated previously.

Such a change has measurable benefits, including savings to taxpayer given that AEC figures reveal by-elections now cost almost $4 million each.

The JSCEM inquiry into the 2019 election recommend a further inquiry *"into the viability of replacing by-elections for the House of Representatives with alternative methods of selecting the replacement MP".*

Nothing happened as far as we are aware to progress that recommendation.

Section 33 of the Constitution requires a by-election to fill a House of Representatives seat whenever a vacancy occurs.

The Real Republic Australia has long advocated that a Senate-style casual vacancy system be adopted for the House of Representatives to avoid costly by-elections.

A change to the way vacancies in lower house seats are filled between elections would avoid the cost of by-elections, delivering more savings to taxpayers who fund the AEC, as well as to parties, candidates, and others.

It would also protect and reinforce the value of the mandate invested by voters in governments at elections.

A not uncommon occurrence following an election is the resignation from the parliament of a Leader of the Opposition who has failed to lead their party into government and decides to make way for a new leader.

This should be viewed as an understandable step for a, usually, senior MP who has served as Opposition Leader but who decides to foster party renewal and make way for the next generation of leadership. As such a system to accommodate such decisions without causing a byelection is worth considering especially if it avoids sending voters in an electorate back to the polls not long after an election.

Other MPs who resign, die in office, or otherwise vacate their lower house seat and who represented a registered political party would be replaced by a person nominated by their party, which has happened since 1977 in the Senate without fuss or debate.

Administrative arrangements could be made to replace Independent MPs by having them lodge at the time of their election with the Speaker or Clerk of Parliament details of a suitably qualified successor for the balance of their term.

In addition, MPs elected for a term but who decide within that term to abandon or change their party allegiance would be replaced by a member nominated by their original party if they leave the parliament.

No previous referendum question has sought to implement a system of casual vacancies for the lower house. But a proposal put to voters by the Fraser Government at a May 1977 referendum formalised what had been the convention of having Senators of one party replaced by a member of that party when a vacancy occurred.

The move followed disquiet about political ploys in 1975 by the then Premier of NSW, Tom Lewis, and Queensland Premier, Joh Bjelke-Petersen, to replace Labor Senators in their states with independents with the aim of destabilising the Whitlam Government.

In February 1975 Lewis chose independent Mayor of Albury, Cleaver Bunton, to fill a Labor vacancy and in September Bjelke-Petersen also defied convention by filling a Labor vacancy with anti-Labor unionist Albert Field. Bunton retired and Field was defeated at the December 1975 federal election following the Whitlam Government's dismissal.

Voters at the 1977 referendum were asked to consider a proposal "to ensure, as far as practicable, that a casual vacancy in the Senate is filled by a person of the same political party as the Senator chosen by the people, and that the person shall hold the seat for the balance of the term".

The question received majority support across all states with a national "yes" vote of 73.32%.

Although prior to the 1977 referendum the relevant Section of the Constitution provided for a casual vacancy system and the amendment by referendum was targeted primarily at preventing party political game-playing, Australians have been quite accepting of the casual vacancy model for the Senate.

One of its benefits, especially since the advent of the 1977 change, is that whatever mandate voters provide at a full or half-Senate election, that mandate is preserved for the duration of the terms of Senators elected at those polls.

We see the same advantage in adopting a casual vacancy system for the House of Representatives.

However, once again we note that any necessary changes to Section 33 to accommodate provisions needed to avoid byelections needs a referendum which the Prime Minister has ruled out.

THE REAL REPUBLIC AUSTRALIA RECOMMENDATION No.9:

We urge the Committee to recommend the adoption of a Senate-style casual vacancy system to replace MPs in the House of Representatives whose seats fall vacant during any term following their election or re-election and that such a system, like the Senate's:

- require a replacement MP to be of the same party as the Member who won the seat at the previous election even if they subsequently had renounced that affiliation, and
- that provisions be made for independent MPs to nominate their successor in the event of their seat falling vacant.

A LONG-TERM REFORM PLAN

Rather than adopting the position of not entertaining any referendum on any constitutional change no matter how beneficial, we believe Prime Minister Anthony Albanese should set out a long-term plan to address and deliver such reforms.

We further advocate that rather than attempt to rely on bipartisan support for any referendum – support that history proves can evaporate when political advantage is apparent – he should adopt process proved to work overseas to deliver something better than bipartisan support, namely non-partisan support.

In June 2021 the Real Republic Australia outlined a suggested "roadmap" to achieve public support for a referendum on our nation's transition to a republic, and to address other proposals for beneficial changes to our Constitution.

Central to our plan is the simple idea that the Australian Constitution belongs to the people of Australia. It is for Australians to assess and examine the Constitution and to play a role in reforming and reshaping it when and where necessary. We believe our "roadmap" provides an understandable and effective way to do just that.

In brief our plan is based around new entities we call Australian Constitutional Assemblies created under federal law.

We propose that a series of separate, successive Australian Constitutional Assemblies could be established to consider specific reform proposals under a long-term plan for constitutional review .

Each Assembly would be given 12 months to complete its review and would report to the Speaker of the House of Representatives who would also be administratively responsible for its operation through the Department of the House of Representatives. Each Assembly would comprise:

- a part-time chair designated by the Speaker of federal parliament who would be an Australian citizen but not an elected member of any legislative body, and
- at least 99 part-time members being Australian citizens entitled to vote at a referendum and recruited at national level in accordance with best recruitment practices so as to be broadly representative of Australian society similar to the sampling methods used in any national market research project.

An Assembly larger than 100 members could be established by parliamentary resolution while another option would be to establish an Assembly in each state and territory and consolidate their recommendations.

A small number of alternate delegates could be selected in case any of the original choices determined at any stage during the process that they could not continue their involvement. Alternate delegates would have no voting rights until they assumed the role of someone who had vacated their position in the Assembly.

Each Assembly would be supported by a small secretariat including administrative and research staff similar to support staff provided to commissions of inquiries or parliamentary portfolio committees. The secretariat would source for an Assembly an expert reference group consisting of individuals knowledgeable in the issue under consideration as well as undertake specific research tasks assigned to it by Assembly members.

In drafting our proposals we have drawn on the experience in the Republic of Ireland where a series of Citizens' Assemblies has considered issues of public policy and constitutional changes.

The selection process in Ireland excludes some categories of people such as politicians and party members, media representatives, and active campaigners for or against the issue being considered.

Similar to the selection process used in Ireland, our proposed Australian Constitutional Assemblies would also exclude serving politicians, members of political parties, media representatives, and anyone deemed to be an active campaigner for or against the issue to be examined.

This means any government, opposition, or individual MP or parties wishing to have a say could do so by making a submission to, or appearing as a witness at an Assembly public hearing.

Those participating in an Assembly would be entitled to be paid for attending meetings, specified travel costs and other designated expenses.

It is envisaged that each Assembly would decide its work plan and the frequency and method of its meetings, with most expected to be virtual meetings held at weekends or after working hours.

At the conclusion of an Assembly, the federal government would need to decide and justify supporting or opposing recommendations of the Assembly – recommendations which would essentially reflect the views of the Australian community.

By using this process prior to any referendum, we believe it can deliver lasting benefits by involving average voters in examining potential constitutional changes while also scrutinising and testing arguments and experts, and – most importantly – heading off and dispending with misinformation or disinformation that might otherwise appear unchallenged in a later referendum campaign.

THE REAL REPUBLIC AUSTRALIA RECOMMENDATION No.10:

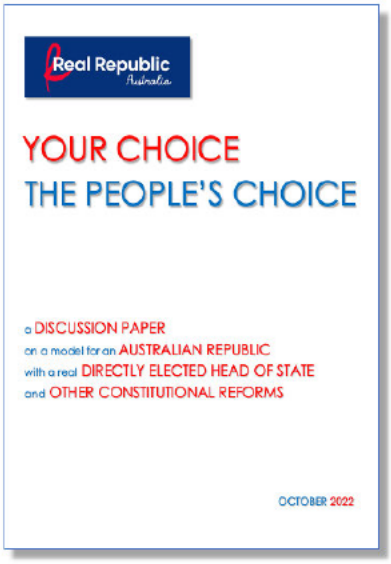
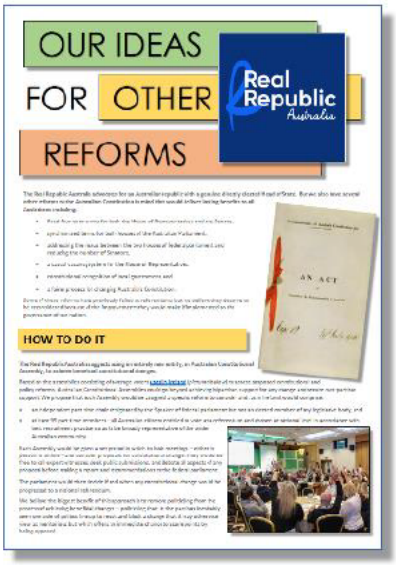
We ask the Committee to recommend that the government undertake a long-term program of constitutional reform to deliver measurable benefits to Australians and our system of parliamentary democracy and that such a process be centred around the use of assemblies of average voters similar to the Citizens' Assemblies employed in Ireland to deliver nonpartisan assessments and recommendations for constitutional changes.

A REAL REPUBLIC

As noted above, the Real Republic Australia continues to advocate for an Australian republic with a genuine directly elected head of state while also campaigning for a range of beneficial constitutional changes.

We are disappointed that as part of his retreat from constitutional change, the Prime Minister has not met a previous expectation of holding a republic referendum in his second term.

Attention now naturally turns to the next generation of Labor leaders, and indeed in other parties, who may commit to such a course of action.

In the meantime further information about the Real Republic Australia and details of our proposals can be obtained at www.realrepublic.au including:

- our discussion paper on our republic model
- other reforms we propose, and
- our "roadmap" for achieving constitutional change.